

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 685

BY JUDICIARY, RULES AND ADMINISTRATION COMMITTEE

AN ACT

RELATING TO CRIMES AND PUNISHMENT; AMENDING CHAPTER 9, TITLE 18, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 18-915D, IDAHO CODE, TO PROHIBIT THE USE OF A MASK OR DISGUISE DURING A CRIMINAL OFFENSE, TO PROVIDE FOR A SENTENCING ENHANCEMENT, TO PROVIDE AN EXEMPTION, AND TO PROVIDE FOR OTHER APPLICABLE LAW; PROVIDING SEVERABILITY; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Chapter 9, Title 18, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 18-915D, Idaho Code, and to read as follows:

18-915D. USE OF MASK OR DISGUISE DURING CRIMINAL OFFENSE -- SENTENCING ENHANCEMENT. (1) It shall be unlawful for any individual to wear a mask or other device that covers, hides, or conceals any portion of the individual's face while committing or attempting to commit a felony crime or misdemeanor assault, battery, indecent exposure, sexual exploitation of a child, or sexual battery.

(2) A person who violates the provisions of this section while committing or attempting to commit another criminal offense may, upon conviction, be subject to an enhanced penalty in addition to the sentence imposed for the underlying offense. Such enhancement shall consist of an additional fine not to exceed two thousand five hundred dollars (\$2,500), an additional term of imprisonment not to exceed one (1) year, or both such fine and imprisonment.

(3) The provisions of this section shall not apply to a law enforcement officer who wears a mask or other device that covers, hides, or conceals any portion of the officer's face while operating within the scope and course of the officer's employment.

(4) The provisions of this section shall not be construed to preclude prosecution or penalties under any other applicable law.

SECTION 2. SEVERABILITY. The provisions of this act are hereby declared to be severable and if any provision of this act or the application of such provision to any person or circumstance is declared invalid for any reason, such declaration shall not affect the validity of the remaining portions of this act.

SECTION 3. An emergency existing therefor, which emergency is hereby declared to exist, this act shall be in full force and effect on and after July 1, 2026.